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Acts and Joint Resolutions, Session of 1975 (ch. 636)

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CHAPTER 636

An Act to amend and reenact § 15.1-676, as amended, of the Code of Virginia, relating to election of members of county board and filling vacancies under county manager plan. [H 1110]

Approved March 24, 1975

Be it enacted by the General Assembly of Virginia:

1. That § 15.1-676, as amended, of the Code of Virginia is amended and reenacted as follows:

§ 15.1-676. Election of members of county board; filling vacancies.

(a) Notwithstanding the provisions of §§ 15.1-674 and 15.1-694, if, in any county operating under the county manager plan provided for in this chapter, a majority of the qualified voters voting on the question submitted in the election held as provided in paragraph (e) of this section shall vote in favor of the election of the members of the county board and the filling of vacancies on the board as hereinafter provided in this section, then upon the entry of an order by the circuit court of the county, or a judge thereof in vacation, setting forth the results of such election, the members of the county board shall thereafter be elected and vacancies on the board shall be filled as provided in this section.

(b) Notwithstanding the provisions of paragraph (a), if a majority of the qualified voters in such election vote in favor of the election of the members of the county board as provided by paragraph (f) hereof, then upon the entry of an order by the circuit court of the county or a judge thereof in vacation, setting forth the results of the election, the members of the county board shall thereafter be elected as provided in paragraph (f) hereof.

(c) Each of such members shall take office on the first day of January after his election and shall hold office until his successor is elected and qualified. Thereafter at each regular November election there shall be elected one or more members of the county board to succeed the member or members whose terms expire on or before the first day of January next succeeding such election; the members so elected shall be elected for terms of four years each and shall take office on the first day of January next succeeding their election.

(d) When any vacancy shall occur in the membership of the county board the judge of the circuit court of the county shall, if the term of the office wherein the vacancy exists shall

continue for one year or more after the next succeeding regular November election,

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issue a writ of election to fill such vacancy, such election to be held at the next regular November election. The member so elected shall hold office for the unexpired term. call a special election for the remainder of the unexpired term to be held not less than forty-five days and not more than sixty days thereafter; provided, however, that if any vacancy occurs within one hundred eighty days before the expiration of a term of office, such vacancy shall be filled by appointment by a majority vote of the remaining members of such board within thirty days of the occurrence of such vacancy after holding a public hearing with respect to such appointment. The appointment shall be for the duration of the unexpired term.

Notwithstanding the provisions of § 24.1-76 and any writs of election issued pursuant thereto, the county board, by majority vote prior to November four, nineteen hundred seventy-five, shall appoint a person to fill the remainder of the term of office of the county board member whose term would have regularly expired on December thirty-one, nineteen hundred seventy-five, which remainder is the period from November five, nineteen hundred seventy-five, through December thirty-one, nineteen hundred seventy-five. The person appointed by the judge of the circuit court to fill the vacancy in said office until the general election on November four, nineteen hundred seventy-five, or until his successor qualifies to serve in said office, shall continue to serve until the person appointed by the county board qualifies to serve in said office. The failure of the board to appoint a person to fill any such vacancy within the time specified shall not be construed to affect the validity of the actions of the board taken during such vacancy.

(e) The election to determine whether the members of the county board shall be elected as provided in paragraph (f) of this section shall be called and held as follows: If a petition signed by two hundred or more qualified voters in any such county shall on or before the first day of April, nineteen hundred fifty-eight, be filed with the circuit court of the county, or a judge thereof in vacation, asking that a referendum be held on such question, the court or judge shall, on or before the first day of May, nineteen hundred fifty-eight, by an order entered of record, require the election officials of the county at the time prescribed by law for the next primary election to be held in July, nineteen hundred fifty-eight, to open a poll and take the sense of the qualified voters of the county on the questions as herein provided. The clerk of the county shall cause a notice of such election to be published in some newspaper, published or having a general circulation in the county, once a week for three consecutive weeks, and shall post a copy of such notice in the courthouse of said county. The regular election officials of the county, at the time designated therein, shall open the polls at the various voting places in the county and conduct the election in such manner as is provided by law for other elections, in so far as the same is applicable. The election shall be by separate ballot, which shall be prepared by the electoral board and distributed to the various election precincts as in other elections. The ballots to be used shall be printed as follows:

Shall the members of the county board be elected biennially for four year terms, as provided in paragraph (f) of § 15.1-676, as amended, of the Code of Virginia

Yes

No

The election shall in all respects be held as provided in § 24-141 [§ 24.1-165] of the Code of Virginia.

(f) If the result of the election held as provided in paragraph (e) hereof be for the election of the members of the county board as provided in this paragraph then the provisions of this paragraph shall supersede all other provisions of this section and the members of the county board shall be elected as hereinafter set forth.

(1) The successors to the members whose terms expire in

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nineteen hundred fifty-eight shall be elected for terms of two years; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January one of the year following their election.

(2) Successors to the members whose terms expire in nineteen hundred fifty-nine and nineteen hundred sixty-one shall be elected for terms of three years at the November election in such years, respectively; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on the first day of January following their election.

(3) Successors to the members whose terms expire in nineteen hundred sixty shall be elected for terms of four years; thereafter all such members shall be elected for four-year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January one of the year following their election.

(4) Vacancies shall be filled as provided by paragraph (d) hereof.